

8	24-01417629 <i>Sullivan vs. Kazerooni</i>	Motion to Dismiss Defendant Sima Kazerooni’s unopposed Motion to Dismiss is DENIED. Defendant moves to dismiss this action pursuant to Business Code section 6204, which provides that if no party seeks a trial de novo within thirty days after service of the arbitration award, the award becomes final and binding. (See Bus. & Prof. Code, § 6204, subd. (a).) While Defendant correctly argues that the arbitration award is binding and the parties are precluded from relitigating the fee dispute, Defendant’s motion is procedurally improper. First, Business and Professions Code section 6204 does not provide for dismissal of the action after the arbitration award has been issued by the arbitrator or confirmed by the court. Second, “dismissal is available only after the court determines that such person [seeking dismissal] was not bound by the arbitration award and was not a party to the arbitration.” (<i>Horn v. Gurewitz</i> (1968) 261 Cal.App.2d 255, 260; Code Civ. Proc., §§ 1286, 1287.2.) Defendant does not contend that she is such a person, nor could she since she is the party who filed the Petition to Arbitrate with the OCBA on 10/16/24. (See ROA 205 [9/11/25 Minute Order].) Third, because the court confirmed the arbitration award on 4/9/26 (see ROA 174), entry of judgment in conformity with the arbitration award is required. (Code Civ. Proc., § 1287.4.) Entering an order of dismissal is not statutorily authorized. Therefore, the motion is DENIED.
9	25-01494464 <i>Torres vs. Sokol</i>	1) Motion to Compel Further Responses to Form Interrogatories 2) Motion to Compel Production 3) Motion to Compel Response to Requests for Admissions Form Interrogatories Plaintiff Maria Torres’s Motion to Compel Further Responses to Form Interrogatories is DENIED. Plaintiff’s Motion is untimely. “Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories.” (Code Civ. Proc., § 2030.300(c).) Initial responses were served on October 22, 2025. The parties agreed to extend the deadline to file Plaintiff’s Motion to January 6, 2026. Plaintiff belatedly filed the Motion on January 9, 2026. Thus, the Motion is untimely and must be denied. Requests for Production

	Plaintiff Maria Torres’s Motion to Compel Further Responses to Requests for Production is DENIED. Plaintiff’s Motion is untimely. “Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand.” (Code Civ. Proc., § 2031.310(c).) Initial responses were served on October 22, 2025. The parties agreed to extend the deadline to file Plaintiff’s Motion to January 6, 2026. Plaintiff belatedly filed the Motion on January 9, 2026. Thus, the Motion is untimely and must be denied. Requests for Admission Plaintiff Maria Torres’s Motion to Compel Further Responses to Requests for Production is DENIED. Plaintiff’s Motion is untimely. “Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or any specific later date to which the requesting party and the responding party have agreed in writing, the requesting party waives any right to compel further response to the requests for admission.” (Code Civ. Proc., § 2033.290(c).) Initial responses were served on October 22, 2025. The parties agreed to extend the deadline to file Plaintiff’s Motion to January 6, 2026. Plaintiff belatedly filed the Motion on January 9, 2026. Thus, the Motion is untimely and must be denied.
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